

tain such a bill against the subordinate officer alone, without joining his superior, whose acts are alleged to have been unlawful, would be contrary to settled rules of equity pleading."

Counsel for appellant directs our attention to other cases, where this Court proceeded to determine the merits notwithstanding the suits were brought against inferior or subordinate officials without joining the superior. We do not stop to inquire whether all or any of them can be differentiated from the case now under consideration, since in none of them was the point here at issue suggested or decided. The most that can be said is that the point was in the cases if anyone had seen fit to raise it. Questions which merely lurk in the record, neither brought to the attention of the court nor ruled upon, are not to be considered as having been so decided as to constitute precedents. See *New v. Oklahoma*, 195 U. S. 252, 256; *Tefft, Weller & Co. v. Munsuri*, 222 U. S. 114, 119; *United States v. More*, 3 Cr. 159, 172; *The Edward*, 1 Wheat. 261, 275-276. In any event, this case falls within the principles definitely established by the *Gnerich* and *Smith Cases*.

Decree reversed with directions to dismiss the bill for want of a necessary party.

NORTON ET AL. v. LARNEY, A MINOR, ET AL.

APPEAL FROM THE CIRCUIT COURT OF APPEALS FOR THE
EIGHTH CIRCUIT

No. 146. Submitted December 8, 1924.—Decided January 5, 1925.

1. An averment in a bill to quiet title to a Creek Indian allotment that the plaintiff went into possession by authority of treaties between the Creek Nation and the United States and the laws of Congress dealing with the lands and individuals of the Creek